

The Cinema Carbons (Control) Order, 1961

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[Rule THE-CINEMA-CARBONS-CONTROL-ORDER-1961 of 1961](#)

[Published on 3 April 1961](#)

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[The Cinema Carbons \(Control\) Order, 1961](#)

[Published vide Noitfication S.O. 738, dated 3rd April, 1961.](#)

[S.O. 738, dated 3rd April, 1961. - In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 \(](#)

[10 of 1955](#)

[\), the Central Government hereby makes the following Order, namely :](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[This Order may be called the Cinema Carbons \(Control\) Order, 1961.](#)

[\(2\)](#)

It shall come into force at once.

2.

Definitions.

- In this Order, -

(a)

["cinema carbon" means imported carbon used in projectors in cinema, studios or laboratories]

[Substituted by S.O.]

;

(b)

"Controller" means the Joint Chief Controller of Imports, Bombay, and includes any other officer appointed by the Central Government to exercise the powers of controller under this Order.

3.

Restrictions on acquisition or sale of cinema carbons.

(1)

No person shall acquire or sell or store for sale cinema carbon except under and in accordance with the terms and conditions of a permit in writing issued by the Controller under this Order.

(2)

In granting or refusing a permit under this Order, the Controller shall, among other matters, have regard to -

(a)

the business ordinarily carried on by the applicant ;

(b)

the requirements of the applicant ;

(c)

the availability of cinema carbons ; and

(d)

any other matter which, in the opinion of the Controller, is relevant for the purpose.

4.

Power to fix prices.

(1)

The Controller may fix the maximum price at which any cinema carbon may be acquired or sold.

(2)

No person shall purchase or offer to purchase or sell or offer to sell cinema carbons at a price in excess of the price fixed under sub-clause (1).

5.

Power of entry and inspection.

- The Controller or any officer duly authorised by him in this behalf may, with a view to securing compliance with this Order, -

(a)

require any person to give any information in his possession with respect to the acquisition or sale of cinema carbons ;

(b)

enter and inspect any premises in which he has reason to believe that cinema carbon is stored ;

(c)

inspect any books of account or other documents in the possession or under the control of any person relating to the acquisition or sale of cinema carbon.

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